

Cross-defendant contends the XC alleges the parties entered into a Right of First Refusal (“ROFR”) on February 1, 2024 which granted him a property right in the subject property. Cross-defendant argues that therefore, recordation of the ROFR cannot be said to be without justification or with malice, a required element of a slander of title claim. While cross-defendant acknowledges the XC also alleges the ROFR was unsupported by consideration, cross-defendant asks this court to overlook those allegations because they conflict with the acknowledgment of consideration in the ROFR document itself. Cross-defendant asks the court to effectively make a determination about the validity and enforceability of the ROFR at the pleading stage. The court declines to do so at the pleading stage, as this type of argument is best suited for an evidentiary motion rather than by way of demurrer. Cross-defendant further argues that recordation of the ROFR does nothing to cast doubt of cross-complainant’s ownership of the real property because the language confirmed cross-complainant’s ownership of the real property. This argument ignores the reality that a ROFR would set a floor for asking price, which would cast doubt of cross-complainant’s ability to sell the real property. In sum, a careful review of the XC reveals it sufficiently alleges all elements for a slander of title claim.

Based on the foregoing, the demurrer is overruled. Cross-defendant shall file and serve an answer by September 4, 2026.

13. S-CV-0057262 Barker, Gregory v. Barnes, Mason

Defendants’ demurrer to complaint is continued to **September 15, 2026, at 8:30 a.m. in Department 32.**

14. S-CV-0058373 Arbaugh, Matthew v. Kennedy, Wayne

The order to show cause regarding preliminary injunction is continued to be heard on **September 8, 2026 at 8:30 a.m. in Department 32.** The court apologizes to the parties for any inconvenience. The temporary restraining order issued on August 5, 2026 shall continue until the court rules on the preliminary injunction.
